Fort Bend County District Court

Cause No. 2023-CV-0016

Jennifer Tyler, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	October 26, 2023
Plaintiff's counsel:	Eric Phillips, Santiago & Romero Law Group

PARTIES

Plaintiff is Jennifer Tyler, an individual residing in Texas, who brings this action in her own right for personal injuries sustained in an automobile collision. Defendant is an automobile insurance carrier authorized to transact insurance business in the State of Texas, which issued a policy of automobile liability and uninsured/underinsured motorist coverage that was in force on the date of the collision and under which Plaintiff is an insured or claimant.

FACTS

On May 30, 2023, Plaintiff was lawfully operating her vehicle on a public roadway in Pasadena, Texas, when another vehicle traveling in the opposite direction crossed into her lane and struck her vehicle head-on. The impact was low in speed, but it was sfuficient to force Plaintiff's body forward and back against her seat and restraint system. Plaintiff reported the collision to Defendant promptly and provided the information and cooperation that Defendant requested. Defendant was notified of the claim and was obligated under the policy to evaluate and resolve it in good faith.

NEGLIGENCE

Defendant owed Plaintiff a duty under the policy and under Texas law to investigate the claim reasonably, to communicate its position clearly, and to pay benefits owed without unreasonable delay. Defendant breached that duty by failing to complete a prompt and fair evaluation of Plaintiff's claim, by delaying payment of amounts that were reasonably clear, and by failing to provide a reasonable explanation for its handling decisions. These failures were a proximate cause of the harm described below.

DAMAGES

As a direct result of the collision and Defendant's conduct, Plaintiff suffered neck and back strain, accompanied by pain, stiffness, limited range of motion, and headaches. She has incurred medical expenses for evaluation and treatment, lost time and income from her work, and physical and mental anguish. Plaintiff seeks actual damages, statutory interest, and attorney's fees as permitted by law. Plaintiff demands judgment against Defendant in the amount of $185,000.00, together with pre-judgment and post-judgment interest, costs of court, and such other relief to which she may be justly entitled.